

Our Ref: [REDACTED] 2025

Enquiries: [REDACTED]

Confidential

Hanyu Liu

Via email: helloluna520@gmail.com

Dear Hanyu

Thank you for your correspondence received in this office on **24 October 2025** and **12 November**.

I note the matters you complain about took place between **June 2022** and **October 2025**.

The *Equal Opportunity Act 1984* (the Act) states that a person who wishes to lodge a complaint of unlawful discrimination must do so within 12 months of the alleged act of discrimination occurring. The Act, however, also states I can accept a complaint outside this 12 month period provided the person making the complaint can show “good cause” as to why I should accept the complaint. I cannot look at the merits of a complaint when deciding whether there is good cause.

The first stage of my enquiry into deciding good cause is to give you an opportunity to provide your reasons for the delay in making parts of your complaint, and the disadvantage you will experience if I do not accept your complaint. If you have any documentation you believe supports your reasons, you will need to provide them at the same time. I ask you provide this information by **19 November**. If I do not hear from you by then, I will assume you do not wish to pursue the out of time matters further.

Once I review your reasons and any documents you provide, if I consider there may be good cause I will give the Public Transport Authority an opportunity to comment on your reasons and to provide me with evidence that the Public Transport Authority will be disadvantaged if I accept those out of time parts of your complaint.

When I have reviewed all the materials provided, I will decide whether you have shown sufficient good cause for me to accept your complaint out of time and you will be notified of my decision.

If you would like to talk to an officer before responding, please contact [REDACTED] on 9216 3900.

Yours sincerely

A handwritten signature in black ink that reads "John Byrne". The signature is written in a cursive, flowing style.

Dr John Byrne
Commissioner for Equal Opportunity
12 November 2025

Enc

83. Making complaints to Commissioner

- (1) A complaint alleging that a person has committed a contravention of this Act, other than a contravention in respect of which a specific penalty is imposed, may be lodged in writing with the Commissioner by —
 - (a) a person on the person's own behalf or on the person's own behalf and the behalf of other persons; or
 - (b) 2 or more persons on their own behalf or on behalf of themselves and other persons; or
 - (c) a trade union of which a person or persons aggrieved by the alleged contravention is a member or are members on behalf of that person or those persons.
- (1a) A complaint alleging that a person has committed, in relation to a person having an impairment, a contravention of this Act, other than a contravention in respect of which a specific penalty is imposed, may be lodged in writing with the Commissioner in accordance with subsection (1) or —
 - (a) where the person having the impairment is unable to write or sign his or her name, by a person authorised to lodge the complaint by the person having the impairment; or
 - (b) where the person having the impairment is unable to authorise a person to lodge the complaint, by any person who satisfies the Commissioner of the proper interest of that person in the care and protection of the person having the impairment.
- (2) A person may lodge a complaint in writing with the Commissioner in respect of any refusal, neglect or failure to obey or comply with an order or interim order of the Tribunal.
- (3) A complaint under subsection (1) or (1a) may be lodged either as a complaint other than a representative complaint or as a representative complaint.
- (4) A complaint made under subsection (1) or (1a) shall be lodged within 12 months after the date on which the contravention of this Act which is the subject of that complaint is alleged to have been committed.
- (5) Notwithstanding subsection (4), the Commissioner, on good cause being shown, may accept a complaint which is lodged more than 12 months after the date referred to in that subsection.
- (6) In this section, **trade union** means an organisation of employees or an organisation of employers.

[Section 83 amended: No. 40 of 1988 s. 13; No. 55 of 2004 s. 305.]
